

Abstractor Notes/Chain

LOGO

Title Examination Notes for:

Client Name:

Client Order Number:

CURE Order Number:

Exam Date: 04/10/2026

Subject Owner and Property Examined:

Barry J. Hendricks and Kelly A. Hendricks

50 Locust Ln

Chagrin Falls, OH 44022

APN: 931-05-032 (and
931-05-072)

County:
Cuyahoga

County Effective Date:
03/30/2026

TITLE EXAMINATION SUMMARY

Current Owner

BARRY J. HENDRICKS AND KELLY A. HENDRICKS — Vesting deed predates 01/01/2000 search window. Ownership confirmed via continuous chain of mortgages and Transfer on Death Affidavit (Doc #202505060166, recorded 05/06/2025).

Prior Owners (in reverse chronological order)

- Prior owner(s) — Vesting deed pre-2000; not identified within search period

Liens Status

- **Mortgage Liens: OPEN — 1 ACTIVE MORTGAGE (2026) + 1 UNRELEASED MORTGAGE (2013)**
- **Tax Liens:** None found
- **Judgment Liens:** None found
- **Mechanics Liens:** None found

Title Status

ENCUMBERED — Subject to open 2026 KeyBank mortgage and unreleased 2013 MERS/CitiBank mortgage. Critical title defect must be cured prior to closing.



CRITICAL ISSUES IDENTIFIED:

- **Issue #1 (CRITICAL):** Unreleased Mortgage recorded February 14, 2013 (Doc #201302140048) to Mortgage Electronic Registration Systems, Inc. (MERS) as nominee for CitiBank — NO RELEASE FOUND. A payoff letter or proof of satisfaction must be obtained. This is a critical title defect that must be cured.
- **Issue #2 (WARNING):** Open Mortgage recorded February 10, 2026 (Doc #202602100279) to KeyBank National Association for \$119,646.04, maturing 02/10/2036 — ACTIVE LOAN. This mortgage encumbers two parcels: 931-05-032 and 931-05-072.
- **Issue #3 (INFO):** Transfer on Death Affidavit (Doc #202505060166, recorded 05/06/2025) is active on this property. Title will pass to the designated beneficiary upon the death of the owners. Beneficiary not indexed — must be confirmed from document text.
- **Issue #4 (INFO):** Multi-Parcel Mortgage — the 2026 KeyBank mortgage encumbers two parcels (931-05-032 and 931-05-072). Parcel 931-05-072 (Locust Lane Estates Subd, Block A) should be verified as part of the subject property.
- **Issue #5:** Tax status pending. Manual lookup required at myplace.cuyahogacounty.gov for both parcels.

NOTES AND OBSERVATIONS

- **Vesting (Pre-2000):** Barry J. Hendricks and Kelly A. Hendricks have held title to 50 Locust Ln since before January 1, 2000. The vesting deed was not found within the search period but ownership is confirmed through a continuous chain of mortgages and the 2025 Transfer on Death Affidavit executed by both parties.
- **2003 ABN AMRO Mortgage (Cleared):** A mortgage for \$130,000 was recorded on February 4, 2003 (Doc #200302040229) to ABN AMRO Mortgage Group Inc. This was fully released by CitiMortgage Inc. on December 6, 2010 (Doc #201012060144). No title issue.
- **2010 MERS Mortgage (Cleared):** A mortgage was recorded on October 29, 2010 (Doc #201010290156) to MERS. This was fully released on March 18, 2013 (Doc #201303180497). No title issue.
- **2013 MERS/CitiBank Mortgage (CRITICAL — OPEN):** A mortgage was recorded on February 14, 2013 (Doc #201302140048) to MERS as nominee for CitiBank. No release or satisfaction has been recorded in Cuyahoga County records. This is a critical title defect requiring a payoff letter or recorded release from CitiBank or its servicer before closing.

- **Transfer on Death Affidavit (2025):** Barry J. Hendricks and Kelly A. Hendricks recorded a Transfer on Death Affidavit (Doc #202505060166) on May 6, 2025. This designates a beneficiary to receive the property upon the death of both owners. It does not convey current title but should be disclosed to all parties.
- **2026 KeyBank Mortgage (Current Loan):** A new mortgage for \$119,646.04 was recorded on February 10, 2026 (Doc #202602100279) to KeyBank National Association, maturing February 10, 2036. This encumbers both parcels 931-05-032 and 931-05-072.
- **Master Mortgage Form:** The 2026 KeyBank mortgage references instrument 201310280632 (KeyBank Master Mortgage Form, filed 10/28/2013). This is administrative boilerplate and not a separate lien on the property.

CURRENT OWNERSHIP

As of the most recent confirmed ownership (pre-2000 vesting, confirmed through 2025 TOD Affidavit):

Owner	Vesting
Barry J. Hendricks and Kelly A. Hendricks	Fee Simple (Joint Ownership)

Prior Owners (Search Period):

- Prior owner(s) — not identified within 01/01/2000 to 04/10/2026 search period (vesting deed pre-dates search window)

CHAIN OF TITLE

Title Chain (Search Period: 01/01/2000 – 04/10/2026)

#	Recording Date	Doc Number	Type	Grantor(s)	Grantee(s)	Notes
1	Pre-2000	Not Found	Deed	Unknown	Barry J. Hendricks and Kelly A. Hendricks	Vesting deed predates search window. Ownership confirmed via

						subsequent instruments.
2	05/06/2025	202505060166	TOD Affidavit	Barry J. Hendricks and Kelly A. Hendricks	Designated Beneficiary (not indexed)	Transfer on Death — does not convey current title. Active.

DEEDS OF TRUST / MORTGAGES

Open / Unreleased Mortgages

Status	Doc Number	Recording Date	Mortgagor	Mortgagee	Original Amount	Notes
CRITICAL — OPEN	201302140048	02/14/2013	Barry J. Hendricks Etal	MERS as nominee for CitiBank	N/A (amount not indexed)	NO RELEASE FOUND — CRITICAL TITLE DEFECT. Payoff letter or recorded release required.
OPEN — ACTIVE LOAN	202602100279	02/10/2026	Barry J. Hendricks and Kelly A. Hendricks	KeyBank National Association	\$119,646.04	Current loan. Maturity: 02/10/2036. Encumbers parcels 931-05-032 AND 931-05-072.

Closed / Released Mortgages

Doc Number	Recording Date	Mortgagor	Original Mortgagee	Amount	Release Doc	Release Date
200302040229	02/04/2003	Barry J. Hendricks Etal	ABN AMRO Mortgage Group Inc.	\$130,000.00	201012060144	RELEASED 12/06/2010 (CitiMortgage Inc.)
201010290156	10/29/2010		MERS	N/A	201303180497	

Barry J.
Hendricks
Etal

RELEASED
03/18/2013
(MERS)

CONCLUSION: Based on the documents reviewed, the property has ONE confirmed OPEN active mortgage (2026 KeyBank, \$119,646.04) and ONE critically unreleased prior mortgage (2013 MERS/CitiBank). The property is **NOT free and clear**. The 2013 CitiBank mortgage must be released or satisfied before any transaction can proceed.

JUDGMENTS, LIENS, AND ENCUMBRANCES

Federal Tax Liens

NONE FOUND in search period

State Tax Liens

NONE FOUND in search period

Mechanics Liens

NONE FOUND in search period

Judgment Liens

NONE FOUND in search period

Other Encumbrances / Flags

TOD_AFFIDAVIT_ACTIVE

A Transfer on Death Affidavit (Doc #202505060166, recorded 05/06/2025) is active on this property. Title will pass to the designated beneficiary upon the death of both owners. Beneficiary must be confirmed from document text.

MULTI_PARCEL_MORTGAGE

The 2026 KeyBank mortgage (Doc #202602100279) encumbers two parcels: 931-05-032 (primary) and 931-05-072 (Locust Lane Estates Subd, Block A). The second parcel should be verified as part of the subject property.

MASTER MORTGAGE FORM (Administrative)

Reference to Doc #201310280632 (KeyBank Master Mortgage Form, 10/28/2013) by the 2026 KeyBank mortgage. This is administrative boilerplate and not a separate lien on the property.

Tax Status

Tax Year 2025-2026:

- **Status:** PENDING — MANUAL LOOKUP REQUIRED
- **Note:** The Cuyahoga County MyPlace portal was inaccessible during the automated exam. Verification required at myplace.cuyahogacounty.gov for both parcels 931-05-032 and 931-05-072.

DOCUMENTS EXAMINED

Doc Number	Type	Recording Date	Parties	Notes
200302040229	Mortgage	02/04/2003	Hendricks → ABN AMRO	RELEASED (Doc #201012060144)
201010290156	Mortgage	10/29/2010	Hendricks Etal → MERS	RELEASED (Doc #201303180497)
201012060144	Release / Satisfaction	12/06/2010	CitiMortgage → Hendricks	Release of Doc #200302040229
201302140048	Mortgage (MERS)	02/14/2013	Hendricks Etal → MERS / CitiBank	CRITICAL — NO RELEASE FOUND
201303180497	Release / Satisfaction	03/18/2013	MERS → Hendricks Etal	Release of Doc #201010290156
201310280632	Master Mortgage Form	10/28/2013	KeyBank NA	Administrative boilerplate — not a lien
202505060166	TOD Affidavit	05/06/2025	Barry J. & Kelly A. Hendricks	ACTIVE — Beneficiary not indexed

202602100279	Mortgage	02/10/2026	Hendricks → KeyBank NA	OPEN — Active loan, \$119,646.04
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LEGAL DESCRIPTION (EXHIBIT A)

PARCEL 1 (931-05-032):

Hughes Hilltop Estate Subd, Lot 9, in the City of Chagrin Falls, County of Cuyahoga, State of Ohio.

PARCEL 2 (931-05-072):

Locust Lane Estates Subd, Block A, in the City of Chagrin Falls, County of Cuyahoga, State of Ohio. (Encumbered by 2026 KeyBank mortgage — verify as part of subject property.)